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Blue Ember Docketing Statement

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Filed January 23, 2026

Blue Ember appeals from a final amended judgment entered December 15, 2025 after a jury trial in Western District of North Carolina Case No. SYN-WDNC-24-CV-0520. The jury found Granite Heron liable for breach and found that its custody failure caused the temperature excursion and resulting loss. It assessed gross damages of \$4,200,000, then deducted \$300,000 for mitigation, producing an original judgment of \$3,900,000 on October 15, 2025.

Granite Heron timely filed a combined Rule 50(b) and Rule 59 motion on November 10. The district court granted renewed judgment as a matter of law on mitigation, imposed a \$1,500,000 reduction, and entered an amended judgment for \$2,700,000. As Rule 50(c) requires after granting renewed judgment, the court also conditionally granted a new trial confined to damages if the judgment-as-a-matter-of-law ruling were vacated or reversed.

Blue Ember seeks reversal of the mitigation JMOL, affirmance of the alternative damages-only new-trial ruling and its limited scope, vacatur of the amended judgment, and remand for the conditional damages retrial. It does not ask this court to reopen the jury's liability or causation findings.

Basis and timeliness of appellate jurisdiction

The district court had diversity jurisdiction over the contract action. Its December 15 order resolved the final outstanding postjudgment requests and entered an amended judgment, leaving no merits claim pending. This court therefore has jurisdiction under 28 U.S.C. § 1291. No certification for interlocutory review is required, and the appeal is not taken from a preliminary order.

The October 15 original judgment did not start an unaltered appellate period because Granite Heron filed its combined motion within twenty-eight days. Federal Rule of Appellate Procedure 4(a)(4)(A) provides that a timely Rule 50(b) or Rule 59 motion resets the appeal period to run from the order disposing of the last remaining motion. The December 15 order resolved both requests. Blue Ember filed its notice on January 12, 2026, twenty-eight days later and within the thirty-day period specified by Rule 4(a)(1)(A). The district clerk certified transmission on January 13.

Neither the United States nor its officer or agency is a party. Blue Ember knows of no unresolved fee request, collateral sanction, or separate claim that defeats finality. The conditional nature of the Rule 59 ruling does not eliminate jurisdiction: it accompanied the granted JMOL as Rule 50(c) contemplates and its operation depends on appellate treatment of that JMOL.

Questions expected to be presented

First, may renewed judgment as a matter of law rest on a mitigation theory first stated after verdict when Granite Heron's two Rule 50(a) motions sought judgment only on causation and expressly left mitigation for the jury? Blue Ember expects to rely on Rule 50's specification and renewal requirements, *Unitherm Food Systems, Inc. v. Swift-Eckrich, Inc.*, and Fourth Circuit authority requiring continuity between the pre-verdict ground and the renewed motion.

Second, if mitigation was unavailable as a JMOL ground, did the district court nevertheless act within its discretion by conditionally granting Granite Heron's timely alternative Rule 59 motion after finding the damages result contrary to the clear weight of evidence? Rule 59 relief involves a distinct standard and does not depend upon pre-verdict preservation in the same manner as renewed judgment.

Third, could the conditional retrial be limited to gross damages and mitigation because those subjects are distinct and separable from the settled liability and causation findings? The special verdict separated breach, causation, damage categories, and a mitigation deduction. Finally, what judgment and remand instructions follow under Rule 50(c)(2) if this court reverses JMOL but sustains the conditional new trial? Blue Ember seeks a disposition that addresses each ruling separately and avoids treating either dollar figure as an immediately payable final recovery.

Material chronology and preservation record

Trial began October 6, 2025. At the close of Blue Ember's proof on October 10, Granite Heron moved under Rule 50(a) solely on whether its custody conduct caused the temperature excursion and validation-lot loss. It told the court that mitigation remained for the jury. At the close of all evidence on October 14, Granite Heron renewed the same causation-only request and again did not seek a directed \$1,500,000 mitigation deduction.

The jury returned its itemized verdict on October 14, finding \$1,350,000 for the lost validation lot, \$850,000 for replacement-campaign expense, and \$2,000,000 for bounded delay loss. From that \$4,200,000 gross figure, the jury subtracted \$300,000 for failure to mitigate. The clerk entered the \$3,900,000 original judgment the next day.

Granite Heron's November 10 filing first presented the Cobalt Finch alternative-production theory as a basis for JMOL and asserted a required \$1,500,000 deduction. Blue Ember opposed on preservation and merits grounds. Following a December 8 hearing, Judge Miriam D. Carver issued the December 15 order granting JMOL, independently granting a conditional damages new trial, and excluding liability and causation from that retrial. This chronology is the actual record on appeal; Blue Ember relies on no different pre-verdict motion.

Related proceedings, record needs, and certification

Counsel know of no prior or pending appeal involving these parties, the validation lot, or the December 15 judgment. No bankruptcy, consolidation, criminal proceeding, or parallel state action is known to affect appellate jurisdiction. The originating district case remains available for proceedings consistent with any mandate, but no merits issue is currently scheduled there. Blue Ember will notify the clerk if a related matter arises.

All trial days and the December 8 posttrial hearing were reported. Blue Ember is filing a separate transcript-order and record-designation document explaining that the necessary transcripts are already on the district docket and that no additional proceeding needs transcription. The proposed record includes the pleadings, contracts, discovery materials used below, trial exhibits, Rule 50(a) motions, special verdict, judgments, combined posttrial submissions, hearing transcript, notice of appeal, and record certificate.

Maya Holt certifies that this docketing statement is accurate after review of the district docket and consultation with trial counsel. On January 23, 2026, the appellate filing system served Eli Mercer and Tara Webb for Granite Heron. Blue Ember requests ordinary merits processing subject to a court-entered schedule. It seeks no stay, summary disposition, or alteration of the record through this statement. Any characterization of the issues is provisional and remains subject to the certified record and the briefs.